

Guidelines for Examination of Patent Applications Involving Traditional Knowledge and Biological Material

IP India · Guideline · 2023

SECTION 1 — PURPOSE AND SCOPE

These guidelines assist patent examiners and applicants in assessing patent applications that draw on traditional knowledge (TK) and biological material, particularly formulations arising from the Ayurveda, Siddha, Unani and Homeopathy (AYUSH) systems. They summarise the interaction between Section 3(p) and Section 3(d) of the Patents Act, 1970, and the role of the Traditional Knowledge Digital Library (TKDL) in prior-art search.

SECTION 2 — SECTION 3(p): TRADITIONAL KNOWLEDGE IS NOT PATENTABLE AS SUCH

Section 3(p) of the Patents Act excludes from patentability "an invention which, in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components." In practice this means:

- A single known herb, mineral, or traditional formulation used for its traditionally known therapeutic property cannot be patented merely by restating that use.
- Combining two or more traditionally known ingredients without demonstrating a synergistic, unexpected effect is treated as an aggregation of known properties and is not patentable.
- Novelty must reside in something beyond the traditional knowledge itself: a new method of extraction, a novel delivery mechanism (e.g. liposomal encapsulation, nanoparticle formulation), a demonstrated synergistic pharmacological effect not obvious from the individual components, or a new industrial process.

SECTION 3 — SECTION 3(d): ENHANCEMENT OF KNOWN EFFICACY

Section 3(d) additionally excludes "the mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy of that substance." For AYUSH-derived inventions this most commonly arises when an applicant claims a new salt, polymorph, isomer, or extract of an already-known active compound. To overcome a 3(d) objection, the applicant must submit comparative data demonstrating enhanced therapeutic efficacy (not merely improved solubility, stability, or bioavailability alone, unless a causal link to therapeutic efficacy is also shown).

SECTION 4 — ROLE OF TKDL IN EXAMINATION

The Traditional Knowledge Digital Library, jointly maintained by the Council of Scientific and Industrial Research (CSIR) and the Ministry of AYUSH, documents pre-existing Ayurveda, Siddha, Unani and Yoga knowledge, classified under a Traditional Knowledge Resource Classification (TKRC) system aligned with the International Patent Classification. Examiners routinely search TKDL as part of prior-art assessment for AYUSH-related applications; access for external searchers is restricted under confidentiality access agreements with select patent offices (India, USPTO, EPO, and others).

SECTION 5 — PRACTICAL DRAFTING GUIDANCE FOR APPLICANTS

1. Do not claim the raw traditional formulation or a straightforward mixture of traditionally known ingredients in the ratios traditionally used.
2. Where possible, claim a specific extraction process, standardized extract (with defined marker-compound percentage), novel delivery system, or demonstrated synergistic combination with supporting data.
3. Include comparative efficacy or toxicity data versus the individual known components, especially for 3(d)/3(p) risk mitigation.
4. Disclose the source and geographical origin of biological material as required under Section 10(4)(d)(ii) of the Patents Act and obtain National Biodiversity Authority (NBA) approval under the Biological Diversity Act, 2002 where applicable, before filing.

SECTION 6 — FEE CONCESSIONS FOR STARTUPS AND MSMEs

Startups (as recognised by DPIIT) and MSMEs are eligible for reduced official fees (up to 80% concession relative to large-entity fees) on patent filing, examination request, and other prosecution fees, subject to submission of proof of startup/MSME status at the time of fee payment.

DISCLAIMER: This is a general summary prepared for informational and demonstration purposes. It does not replace consultation of the current Manual of Patent Office Practice and Procedure or professional legal advice.